STANFORD CEPHAS SHAMBARE MHUNDWA
versus
REGAN GIBSON BEFURA
and
BENARD GAVAZ
and
BRIAN WILSON

HIGH COURT OF ZIMBABWE
CHINAMORA J
HARARE, 11 November 2025

Opposed application

Mr P Muzvuzvu, for the applicant
Mr T Chiturumani, for the respondents

CHINAMORA J:

On the 1 November 2023, after hearing counsel I granted the following order:

1. The applicant be and is hereby declared as the sole and rightful holder and occupier of a piece of land situate at Mhundwa Village Seke Rural Lands shown on the Land Allocation Form issued by Harava Rural District Council on 27 May 1992.
2. The first, second and third respondents and their associates' occupation of the piece of Land referred to in paragraph 1 of this order be and is hereby declared to be illegal.
3. Each party shall bear its own costs.

The applicant approached this court contending that he was born and bred within the ranks of rural villagers at Mhundwa Village, Seke Rural Lands. Upon attaining the age of majority, he submits that he was given a certain piece of rural land situate in the said village by virtue of customary inheritance and succession. In addition, the applicant claims that the 1st, 2nd and 3rd respondents and eight unknown individuals invaded his piece of land and allocated it to themselves with the blessing of the 1st respondent. He avers that this was done without his

knowledge and/or consent. It is applicant's case that he was then denied the right to enjoy his said piece of land.

As a result of the actions aforesaid, the applicant approached this court with a application for an order declaring that the 1st, 2nd, and 3rd respondent and their associates' occupation of the disputed piece of land in Mhundwa Village, Seke Rural Lands is illegal. The application was opposed by the 1st, 2nd, and 3rd respondents. In essence, these respondents raised three preliminary points. The first point was that applicant had not cited the authority responsible for the administration (and allocation) of communal land. According to the respondents, the responsible authorities which should have been cited are the Ministry of Local Government, Public Works and National Housing, Beatrice Rural District Council, the Chief of the area and the village head who allocated the land. Secondly, the respondents argued that the applicant had not exhausted available internal remedies. The final point in *limine* was that there were material disputes of facts which could not be resolved on papers by this court without resort to the hearing of *viva voce* evidence.

On the merits, the respondents denied that the applicant had ever inherited the land in question. They claimed that applicant's father had never used the land in dispute. It is the submission of the respondents that, when applicant's father died, his family relocated to Chikwaka Village. Effectively, the respondents' contention was that the applicant abandoned the land subject of this application, and the village head allocated that land to other villagers.

Additionally, the respondents argued that their occupation of the disputed land was not unilateral as alleged by the applicant. On the contrary, they submitted that they approached the village head, who allocated them that land. Further, the respondents stated that the land was not vacant as was occupied by one Columbus Shambare, from whom the village head took pieces of land given that he had a huge track of land. Consequently, the respondents argue that it was not necessary to seek the consent of the applicant, since he was not in possession of that land as he had left the village. The sum total of the respondents' case was that the land in dispute was taken by the responsible authority in the exercise of its lawful administrative powers.

The applicant filed his answering affidavit and refuted the objections raised by the respondents. On the merits, the applicant maintained his case, save to add that Columbus Shambare (aforesaid) is his nephew who was selling land, including the land in question, to

prospective buyers who include the respondents. The applicant contended that there is no lawful administrative decision revoking his right to use and occupy the designated communal land.

I propose to deal with the preliminary points first before addressing the matter on the merits. They will now be dealt with each in turn.

(a) Non citation of responsible authorities

It is respondents' case that the application is fatally defective for failure to cite the responsible authorities. As already stated, the respondents contend that the applicant ought to have cited the Ministry of Local Government, Public Works and National Housing, Beatrice Rural District Council, the Chief of the area and the Village Head.

The applicant on the other hand argues that the non-citation of the responsible authorities referred to by the respondents is not fatal to his cause since no substantive relief is sought against them. It is pertinent to note that Rule 32 (10) of the High Court Rules, 2021 provides that no matter shall be defeated by reason of the misjoinder or non-joinder of a party. In addition, the Rule empowers this court to make a determination on issues or questions in dispute, in so far as they affect the rights and the interests of the parties before the court.

The dispute in *casu* requires me to decide on who of the parties before me has the right to the land in question. Certainly, this question can be resolved by this court in the absence of the responsible authorities mentioned by the respondents. The parties themselves have produced documents and forms which they allege respectively give them a right to the said piece of land. As such, this court can readily make a decision on the basis of the available evidence. I am not persuaded that the said preliminary objection is merited, and it is dismissed.

(b) Failure to exhaust internal remedies

The respondents protest that the applicant did not exhaust internal remedies available to him. According to the respondents, the dispute on communal land or rural land fall within the jurisdiction of traditional leaders who are vested with the powers to distribute the same and dispossess villagers of land in accordance with the law and or customs of the area. It is respondents' case that if there is a dispute over communal land, it is referred to the village head for arbitration and or conciliation or resolution. Any party aggrieved by the village head's decision has the right to appeal to the Chief of the area. If a party is not happy with the decision

by the Chief, there is a right of appeal to the Magistrates' Court. This is followed by the hierarchy of appeal upwards, right up to the Supreme Court.

The applicant argued that the alleged non-exhaustion of internal remedies is misplaced. In this respect, he submitted that the determination of a declarater is legally beyond the purview of the traditional courts. This is because, in terms of section 14 of the High Court Act [Chapter 6:07], only the High Court has the power to entertain applications of this nature. It is trite law that a litigant should be discouraged from running to the courts before he has exhausted available and effective internal or domestic remedies, when faced with a legal dispute.

It must be noted that the applicant approached this court in terms of section 14 of the High Court Act which provides that:

> "The High Court may, at its discretion, at the instance of any interested person, inquire into and determine any existing, future or contingent right or obligation…"

The enquiry for in an application for declaratory relief is about whether or not the applicant has any existing, future or contingent right or obligation in the piece of land in question. Therefore, to have *locus standi* in this matter, the applicant merely needs to allege that he is an interested person with a direct and substantial interest. In this context, in *Munn Publishing (Pvt) Ltd v ZBC* 1994 (1) 337 (S) at 343, GUBBAY CJ held that:

> "…any interested person with a direct and substantial interest may approach the court for the determination of an existing, future and contingent right which could prejudicially affected by the decision of the court as the first step. The second rung of the test, is that the court must decide whether or not the case in question is one it should properly exercise its discretion."

See *Adbro Investment Co Ltd v Minister of the Interior and Others* 1961 (3) 283 (T) and *Johnsen v AFC* 1995 (1) ZLR 65 (H).

Consequently, the respondents' preliminary objection lacks merit and is dismissed.

(c) Material dispute of facts.

It was also argued by the respondents that there is a material dispute of facts which cannot be resolved on affidavits and supporting documents filed by the parties. The respondents claim that when they came to Mhundwa Village looking for land to occupy and possess, the approached the village head who allocated pieces of land to them. The village head allocated

them piece of land belonging to one Columbus Shambare. They were then issued with letters by the village head indicating that they had complied with all the required customary rites and were now part of the village. To that effect, the respondents tendered a letter by the village head which reads as follows:

> "TO WHO IT MAY CONCERN
> Dear Sir/Madam
> RE: PROOF OF OWNERSHIP FOR BRIAN WILSON ID 59-158239H59
>
> This minute serves as confirmation that the above-named person owns a stand in Mhundwa Village Ward One Seke. He/she has been granted permission to develop the stand…".

The applicant denies the existence of any material dispute of facts. He contends that the facts that he deposed to in his founding affidavit were not disputed or traversed by respondents in a manner which leaves the Court in doubt which requires *viva voce* evidence to be adduced. The applicant argued that, in the absence of the affidavit by the Village Head that he took land from Columbus Shambare to accommodate the respondent, the court is at pains to accept that explanation. Furthermore, the respondents themselves failed to produce or attach the register of the villagers from the Village Head to support their submission. The applicant contended that this lack of corroboration of the respondents' assertion damages their case.

Lastly, the applicant argued that the letters by the village head do not confirm that they complied with all the requisite Customary rites and were now part of Mhundwa Village. The letters exemplified by the one quoted above, signed by the Secretary General for Village Head Mhundwa, simply state that each respondent owns a stand in Mhundwa Village, Ward One, Seke. Additionally, the letters do not say that the land allocated to the respondents is the one from one Columbus Mhundwa. I examined the land allocation forms tendered by the applicant as Annexures A1 to A4, which are from Harava District Council (Department of Works and Planning). It is trite law that a material dispute of fact does not merely arise where a party denies material allegations made by another. The law states that a dispute of fact arises where a party alleging a material dispute of fact "produces positive evidence to the contrary". This proposition of law was made in *Chiangwa v Katerere and Ors* SC 61-21. This has not been the case in *casu.* Consequently, I am not persuaded that a material dispute of facts exists, and I proceed to dismiss the preliminary point for lack of merit. Let me now consider the merits of the case.

The merits of the dispute

On the merits, I observe that Sections 23 to 28 of [Chapter 29:17] deal with the *"Issue of Village registration certificates* the Traditional Leaders Act *and settlement permits and occupation of communal land".* These provisions establish an elaborate procedure for one to be given authority to occupy and use communal land which is vested in the President in terms of section 4 of the Communal Land Act [Chapter 20:18].

Before this court the respondents produced letters signed by the Secretary General for Village Head Mhundwa, namely, Annexures A, B and C. A matter of law, the said letters do not confer the right to occupy and use communal land as envisaged by the provisions of the Traditional Leaders Act and the Communal Land Act. On the other hand, the applicant produced a Land Allocation Form issued by the Harava District Council Department of Works and Planning, which in my view confers the applicant with the right to occupy and use the said land in question. In this context, I observe that Section 26 (1) of the Traditional Leaders Act provides that no communal land shall be allocated except with the approval of the Rural District Council. The Rural District Council is the administrative authority with overall control over the use and allocation of all communal land.

Having taken into account all the above considerations, I granted the applicant the relief he sought and issued the order appearing on the first page of this judgment.

Hamunakwadi Nyandoro & Partners, applicant's legal practitioners
Chiturumani Law Chambers, respondents' legal practitioners